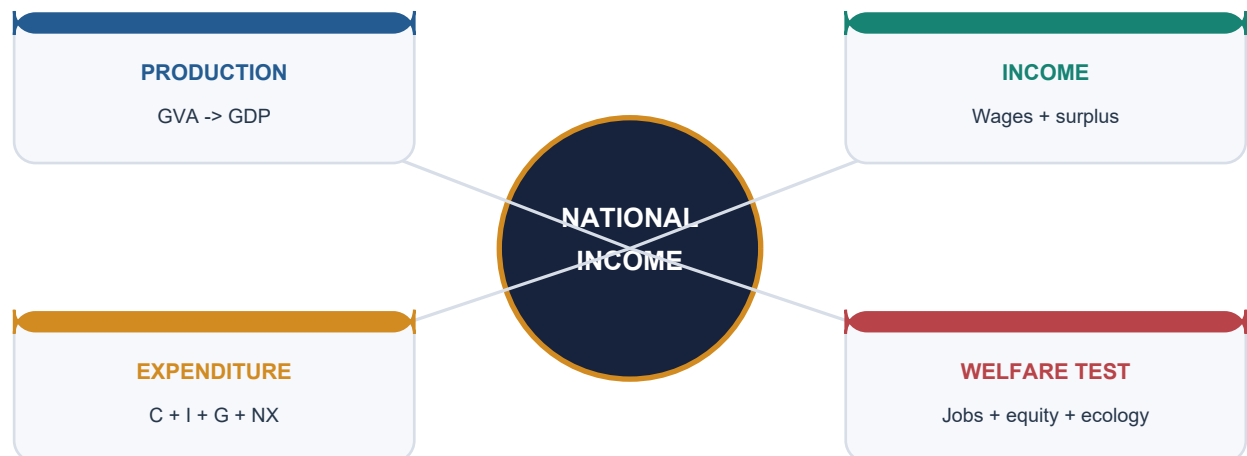


COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 20 - State Legislature - Complete Topic Package

Subject: Indian Polity | **Topic:** 20 | **GS-II + Prelims** | **Export date:** 2026-08-18 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, judicial or officially verified proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated legal/current control; [LIMIT] qualification preventing overstatement.

Package method, source priority and current control

- Source order followed: basic/State-Legislature.md -> advanced/20_State-Legislature.md -> basic/Anti-Defection-Law.md -> necessary cross-links in Polity 17 and 19 -> live PRS/current legal control. Qdrant was not used.
- [FACT] The Core owner supersedes any stale or less-qualified Advanced statement.
- [CURRENT] Legal and institutional status is controlled to **18 August 2026, Asia/Kolkata**.
- [CURRENT] Six States have Legislative Councils: Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra and Karnataka.
- [CURRENT] The Constitution (106th Amendment) Act provides one-third reservation for women in the Lok Sabha and State Legislative Assemblies, but it is not yet operational because the constitutionally required census-linked delimitation has not been completed.
- [CURRENT] Three 2026 Bills sought to use the 2011 Census, enlarge the Lok Sabha and activate reservation. The constitutional amendment Bill failed to obtain the required special majority on 17 April 2026; the connected Bills were withdrawn. They are not law.
- [CURRENT] Census 2027 has a reference date of 1 March 2027. Publication, delimitation and operational reservation dates remain unknown.
- [LIMIT] The women-reservation amendment covers the Lok Sabha and State Legislative Assemblies, not Legislative Councils.
- [CURRENT] On gubernatorial assent, the five-judge Article 143 advisory opinion of 20 November 2025 rejects court-created rigid timelines and automatic deemed assent, while allowing limited review of prolonged, unexplained and indefinite inaction.
- [LIMIT] The November 2025 opinion is advisory and did not "overrule" the April 2025 Tamil Nadu judgment. Use it as the later controlling qualification on timelines, deemed assent and limited mandamus.
- Current delimitation source: PRS Legislative Research, <https://prsindia.org/billtrack/the-delimitation-bill-2026>.
- Package target: independently answer-complete Foundation/Core, Optional Advanced refinements, more than 30 text-native visuals, two direct solved Mains PYQs, routed Prelims demands, 36 original MCQs, 12 remedial MCQs and eight original solved Mains questions.

Roadmap

Stage	Coverage	Exam outcome
Constitutional skeleton	Articles 168-177	Locates Houses, membership and sessions
Assembly	Composition, election, duration and representation	Solves direct factual questions
Council	Article 169, composition and duration	Answers the 2021 Mains PYQ
Officers and membership	Articles 178-193	Handles Speaker, quorum and disqualification
Privileges	Articles 194-195	Separates speech immunity from institutional privilege
Legislative procedure	Articles 196-201	Compares ordinary, Money and reserved Bills
Financial procedure	Articles 202-207	Tracks budget, grants and financial Bills
Procedure and courts	Articles 208-212	Explains autonomy and judicial-review limits
Accountability	Questions, motions, committees and confidence	Links procedure to responsible government
Reform	sittings, scrutiny, Speaker neutrality and Councils	Produces balanced GS-II conclusions
Workbook	PYQs, MCQs, remedials and solved Mains	Converts coverage into marks

Scope ownership and cross-links

- **Polity 17 - Parliament:** Union comparison, parliamentary devices and committee logic.
- **Polity 19 - Governor, CM and State Council:** Governor's assent, ordinance power, confidence and State executive.
- **Polity 27 - Election Commission:** election disputes, RPA and electoral machinery.
- **Polity 42 - Anti-Defection Law:** full Tenth Schedule doctrine and reforms.
- [LIMIT] This package owns the institutions and procedures of State legislatures. It supplies enough cross-linked doctrine to remain independently answer-complete without duplicating every specialist topic.

PART I - Complete Foundation and Core learning session

01. Constitutional architecture: no uniform State legislature

Visual 1 - Article 168 structure

```

STATE LEGISLATURE
|
+-- Governor (constitutional component)
|
+-- Legislative Assembly in every State
|
+-- Legislative Council only in six States

```

Caption: A State legislature includes the Governor, but the Governor is not a member of either House.

- [FACT] Article 168 provides a legislature for every State consisting of the Governor and one or two Houses.
- [FACT] Every State has a Legislative Assembly. Only specified States have a Legislative Council.
- [FACT] A unicameral legislature is Governor plus Assembly; a bicameral legislature is Governor plus Assembly plus Council.
- [ANALYSIS] State bicameralism is optional and asymmetric. It is not a federal necessity comparable to the Rajya Sabha.
- [LIMIT] Inclusion of the Governor under Article 168 does not confer member privileges under Article 194.

Visual 2 - Six bicameral States

Mnemonic	State
K	Karnataka
A	Andhra Pradesh
T	Telangana
B	Bihar
U	Uttar Pradesh
M	Maharashtra

Mnemonic: KATBUM - the six States with Legislative Councils.

- [FACT] Jammu and Kashmir's Legislative Council was abolished through the 2019 reorganisation framework.
- [FACT] Tamil Nadu's 2010 Council-creation legislation was not brought into force.
- [LIMIT] Proposals or Assembly resolutions for a Council do not themselves create one. Parliament must enact the Article 169 law.

02. Article 169: creation or abolition of a Legislative Council

Visual 3 - Article 169 sequence

```

State Legislative Assembly
passes special-majority resolution
    |
    v
Parliament may enact a law
by ordinary/simple majority
    |
    v
Council created or abolished
    |
    v
Incidental constitutional-text changes allowed
without using Article 368
  
```

- [FACT] The Assembly resolution requires:
 - a majority of the total membership of the Assembly; and
 - a majority of not less than two-thirds of members present and voting.
- [FACT] Parliament may then provide by law for creation or abolition.
- [FACT] Parliament passes that law by ordinary legislative majority.
- [FACT] Article 169 expressly prevents the law from being treated as a constitutional amendment for Article 368.
- [LIMIT] Parliament is enabled, not mechanically compelled, by the Assembly resolution.
- [ANALYSIS] The design lets each State express institutional preference while preserving Parliament's final law-making control.

Visual 4 - Majority trap

Stage	Required majority
Assembly resolution	Total-membership majority plus two-thirds present and voting
Parliamentary law	Simple/ordinary majority
State ratification under Article 368	Not required

UPSC trap: The special majority belongs to the initiating Assembly resolution, not to Parliament's later Article 169 Act.

03. Legislative Assembly: popular chamber and confidence chamber

Visual 5 - Democratic chain

Adult citizens
|
direct territorial election
|
Legislative Assembly
|
confidence / no-confidence
|
Chief Minister and Council of Ministers

- [FACT] Article 170 ordinarily provides 60 to 500 directly elected members from territorial constituencies.
- [FACT] Special constitutional or statutory arrangements permit smaller Assemblies, including Sikkim 32, Goa 40 and Mizoram 40.
- [FACT] Universal adult suffrage under Article 326 governs direct election.
- [FACT] The Council of Ministers is collectively responsible only to the Legislative Assembly under Article 164(2).
- [ANALYSIS] Direct election plus confidence control makes the Assembly the democratic and political centre of State government.

Visual 6 - Representation controls

Control	Position
Territorial constituencies	Direct election
Population-seat readjustment	Frozen until relevant figures of first census after 2026 are published
SC/ST reservation	Constitutionally protected and population-linked
Anglo-Indian nomination	Lapsed under the 104th Amendment
Women's reservation	Constitutionally provided, not yet operational

- [FACT] The 84th Amendment continued the freeze on total seat readjustment until publication of the first census taken after 2026.
- [LIMIT] The year 2026 did not itself trigger delimitation.
- [CURRENT] The 2026 legislative package that sought an earlier route using the 2011 Census failed; the existing constitutional sequence remains controlling.

04. Legislative Council: composition and representational logic

Visual 7 - Article 171 composition wheel

1/3 local authorities
1/12 graduates
1/12 teachers
1/3 elected by MLAs from non-MLAs
1/6 nominated by Governor

- [FACT] Council strength cannot exceed one-third of the Assembly strength and cannot ordinarily be below 40.
- [FACT] Five-sixths are indirectly elected and one-sixth are nominated.
- [FACT] Elected categories use proportional representation by means of the single transferable vote.
- [FACT] Governor-nominated members possess special knowledge or practical experience in literature, science, art, the cooperative movement or social service.
- [LIMIT] "Education" is not the exact constitutional category; "literature" and "science" are.

Visual 8 - Electoral colleges

Share	Electoral source	Core logic
1/3	Municipalities, district boards and other specified local authorities	Local-government voice

Share	Electoral source	Core logic
1/12	Graduates of prescribed standing	Functional constituency
1/12	Teachers of prescribed standing in qualifying institutions	Functional constituency
1/3	MLAs elect non-MLAs	Assembly-linked membership
1/6	Governor nominates	Expertise and public service

- [ANALYSIS] The Council mixes territorial-local, occupational, Assembly-mediated and expert representation.
- [ANALYSIS] This diversity can improve scrutiny, but old graduate/teacher franchise categories invite reform questions about contemporary representativeness.

05. Duration: dissolution versus continuity

Visual 9 - House life cycle

ASSEMBLY	COUNCIL
5-year normal term	permanent chamber
may be dissolved	cannot be dissolved
entire House renewed	1/3 retires every 2 years
	member term: 6 years

- [FACT] Article 172 gives an Assembly a normal five-year term from its first meeting unless sooner dissolved.
- [FACT] During a National Emergency, Parliament may extend an Assembly term one year at a time, but not beyond six months after the emergency ends.
- [FACT] The Council is permanent; one-third retire every second year.
- [ANALYSIS] Council continuity can preserve institutional memory when the Assembly changes abruptly.

06. Qualifications, oath and disqualification

Visual 10 - Entry requirements

Requirement	Assembly	Council
Citizenship	Indian	Indian
Minimum age	25	30
Oath/affirmation	Required before sitting	Required before sitting
Other qualifications	Parliamentary law	Parliamentary law

- [FACT] Article 173 contains citizenship, oath and age requirements.
- [FACT] Article 188 requires oath or affirmation before the Governor or a person appointed by the Governor.
- [FACT] Sitting or voting without qualification/oath may attract the Article 193 penalty.

Visual 11 - Article 191 disqualifications

Office of profit under Union/State
 Unsound mind declared by competent court
 Undischarged insolvent
 Not citizen / foreign allegiance
 Disqualified by parliamentary law
 Tenth Schedule defection

- [FACT] Article 191 supplies constitutional grounds; the Representation of the People Act adds statutory grounds.
- [FACT] Under Article 192, a non-defection question of member disqualification is decided by the Governor after obtaining and acting according to the Election Commission's opinion.
- [FACT] Tenth Schedule disputes are decided by the Speaker or Chairman, subject to judicial review.
- [LIMIT] Do not send a Tenth Schedule question to the Governor under Article 192.

07. Sessions, prorogation and dissolution

Visual 12 - Article 174 controls

Governor summons House(s)
|
+-- not more than 6 months between sessions
|
+-- may prorogue House(s)
|
+-- may dissolve Assembly

- [FACT] The Governor summons each House from time to time.
- [FACT] Six months cannot intervene between the last sitting in one session and the first sitting in the next.
- [FACT] Prorogation ends a session; adjournment suspends a sitting; dissolution ends the Assembly's life.
- [FACT] A Legislative Council is never dissolved.
- [LIMIT] The Governor ordinarily acts on ministerial advice; Article 174 is not a general personal discretion.

Visual 13 - Terminology

Device	Authority	Effect
Adjournment	Presiding officer/House	Suspends sitting
Adjournment sine die	Presiding officer	Ends sittings without next date
Prorogation	Governor	Ends session
Dissolution	Governor constitutionally	Ends Assembly

08. Governor's address and messages

Visual 14 - Articles 175-176

Article 175

- address either House or both
- send messages on pending or other matters

Article 176 special address

- first session after each general election
- first session of each year
- followed by Motion of Thanks
- [FACT] The special address states the causes of summoning and outlines the government's programme.
- [ANALYSIS] Debate on the Motion of Thanks is a broad accountability occasion, not merely ceremonial response.
- [LIMIT] Defeat on an amendment or Motion of Thanks may be politically serious, but confidence consequences depend on context and House practice.

09. Presiding officers: offices and continuity

Visual 15 - Constitutional offices

House	Presiding officer	Deputy
Assembly	Speaker	Deputy Speaker
Council	Chairman	Deputy Chairman

- [FACT] Articles 178-181 govern Assembly officers; Articles 182-185 govern Council officers.
- [FACT] Each House chooses its presiding and deputy presiding officer from among its members.
- [FACT] An Assembly Speaker resigns to the Deputy Speaker; the Deputy Speaker resigns to the Speaker.
- [FACT] Removal requires a resolution passed by a majority of all then members after at least 14 days' notice.
- [FACT] The Speaker continues after dissolution until immediately before the first meeting of the next Assembly.

- [FACT] A presiding officer does not preside over a motion for their own removal but may participate and vote in the first instance.

Visual 16 - Speaker's core functions

ORDER AND PROCEDURE

- +-- interprets rules
- +-- recognises speakers
- +-- maintains discipline
- +-- decides admissibility

CONSTITUTIONAL FUNCTIONS

- +-- Money Bill certification
- +-- Tenth Schedule adjudication
- +-- casting vote when tied

10. Impartiality and the Speaker problem

Visual 17 - Institutional tension

Speaker remains party member
+
controls House agenda and recognition
+
decides defection petitions
=
risk of partisan delay or selective urgency

- [FACT] The Tenth Schedule assigns defection decisions to the Speaker/Chairman.
- [FACT] *Kihoto Hollohan* treats the presiding officer as a tribunal subject to judicial review.
- [FACT] *Keisham Meghachandra Singh* (2020) stated that petitions should ordinarily be decided within a reasonable period of about three months and urged Parliament to consider an independent tribunal.
- [FACT] *Subhash Desai* (2023) holds that the whip and leader recognised for Tenth Schedule purposes must be appointed by the political party, not merely a legislature-party faction.
- [LIMIT] The independent tribunal and statutory deadline are proposals, not enacted law.
- [ANALYSIS] Neutrality cannot rest only on personal virtue where office incentives are partisan.

11. Quorum, voting and vacancies

Visual 18 - Article 189

Rule	State House position
Ordinary decision	Majority of members present and voting
Presiding officer	No first vote; casting vote on equality
Quorum	10 members or one-tenth, whichever is greater
Vacancy	House may act despite vacancies, subject to constitutional limits

UPSC trap: State quorum is not merely one-tenth; it is **10 or one-tenth, whichever is greater**.

- [FACT] If quorum is absent, the presiding officer must adjourn or suspend the meeting until quorum exists.
- [ANALYSIS] Vacancies do not automatically paralyse a House, but disputed majorities must be tested against the effective constitutional membership and valid votes.

12. Privileges and freedom of speech

Visual 19 - Article 194 shield

Freedom of speech in legislature

```
|
+-- subject to Constitution and House rules
|
+-- immunity for vote or speech in House/committee
|
+-- authorised publication immunity
```

- [FACT] Article 194 protects members from court proceedings for speech or vote in the House or committee.
- [FACT] Privilege belongs to members and the House; it is not a general immunity for conduct outside legislative functions.
- [FACT] Article 211 bars discussion of the conduct of Supreme Court or High Court judges in discharge of duties.
- [LIMIT] The Governor is a component of the legislature but not a House member and does not acquire Article 194 member privilege.
- [ANALYSIS] Privilege protects deliberative independence, not corruption or substantive constitutional illegality.

13. Ordinary Bills in a unicameral State

Visual 20 - Unicameral route

Introduction in Assembly

```
|
readings / debate / committee / vote
|
passed by Assembly
|
presented to Governor under Article 200
|
assent / return / withhold / reserve
```

- [FACT] Subject to special rules, an ordinary Bill may be introduced by a minister or private member.
- [FACT] A Bill pending in the Assembly lapses on dissolution unless constitutional doctrine provides otherwise.
- [FACT] A Bill passed by the Assembly but pending with the Council ordinarily lapses on Assembly dissolution.
- [LIMIT] Bill-lapse questions are status-sensitive; always identify the House and stage.

14. Ordinary Bills in a bicameral State

Visual 21 - Article 197: maximum Council delay

Assembly passes Bill

```
|
Council rejects / delays / amends
|
up to 3 months
|
Assembly passes again
|
Council rejects / delays / amends
|
up to 1 month
|
Bill deemed passed in Assembly form
```

- [FACT] The Council cannot permanently veto an ordinary Bill.
- [FACT] Total potential delay is approximately four months: three months plus one month.
- [FACT] There is no joint sitting of State Houses.
- [ANALYSIS] The Council is a suspensive or dilatory chamber, not a co-equal revising chamber.
- [LIMIT] Four months is the maximum constitutional delay across the two-stage route, not a single fixed holding period.

Visual 22 - Assembly versus Council on ordinary Bills

Feature	Assembly	Council
Initiation	Yes	Yes, except Money/financial restrictions
Final control	Yes	No
First-stage delay	Repasses	Up to 3 months
Second-stage delay	Prevails	Up to 1 month
Joint sitting	Not applicable	No joint sitting exists

15. Money Bills: Assembly monopoly

Visual 23 - Money Bill route

Governor's recommendation
 |
 introduction only in Assembly
 |
 Speaker certifies Money Bill
 |
 Council may recommend within 14 days
 |
 Assembly accepts or rejects recommendations
 |
 Governor

- [FACT] Article 199 defines a State Money Bill and makes the Speaker's certificate central.
- [FACT] A Money Bill cannot be introduced in the Council.
- [FACT] The Council must return it within 14 days with recommendations, which the Assembly may accept or reject.
- [FACT] If not returned within 14 days, it is deemed passed in the Assembly form.
- [FACT] A Money Bill cannot be returned by the Governor for reconsideration under Article 200.
- [ANALYSIS] The confidence chamber controls taxation, borrowing and the Consolidated Fund.

Visual 24 - Money Bill close options

Claim	Correct position
Council may reject	No
Council may amend	Only recommend
Council has 14 days	Yes
Speaker certifies	Yes
Joint sitting resolves dispute	No

16. Governor's assent under Articles 200-201

Visual 25 - Four Article 200 routes

Bill presented to Governor
 |
 +-- assent
 +-- withhold assent
 +-- return non-Money Bill for reconsideration
 +-- reserve for President

- [FACT] A returned non-Money Bill, if repassed, is presented again and the constitutional text states that the Governor shall not withhold assent.
- [FACT] Reservation is mandatory where the Bill would so derogate from High Court powers as to endanger its constitutional position.
- [FACT] Under Article 201, the President may assent, withhold, or direct return of a non-Money Bill.

- [FACT] Repassage after presidentially directed return does not compel presidential assent.
- [CURRENT] The November 2025 Article 143 opinion rejects rigid court-written timelines and deemed assent, but prolonged unexplained inaction remains amenable to limited judicial review and a direction to decide.
- [LIMIT] A court may require constitutional action; it does not choose the substantive option for the Governor or President.

17. Annual financial statement and demands for grants

Visual 26 - State budget chain

Annual Financial Statement: Article 202
 |
 charged expenditure identified
 |
 demands for grants voted by Assembly: Article 203
 |
 Appropriation Bill: Article 204
 |
 Finance/financial legislation: Article 207

- [FACT] The Governor causes the annual financial statement to be laid before the House or Houses.
- [FACT] Charged expenditure is discussed but not voted.
- [FACT] Demands for grants are submitted only to the Assembly and require the Governor's recommendation.
- [FACT] No money may be withdrawn from the Consolidated Fund of the State except under appropriation made by law.
- [FACT] The Council cannot vote demands for grants.

Visual 27 - Grants toolkit

Device	Purpose
Supplementary grant	Original amount insufficient
Additional grant	New service not contemplated
Excess grant	Expenditure exceeded authorised amount
Vote on account	Short-term expenditure pending full budget
Vote of credit	Unexpected demand of indefinite character
Exceptional grant	Special purpose outside current service

18. Financial Bills and recommendation

Visual 28 - Money Bill versus Financial Bill

Question	Money Bill	Wider Financial Bill
Contains only Article 199 matters	Yes	May contain other matters
Introduction	Assembly only	Constitutionally restricted as applicable
Governor recommendation	Required	Required for specified financial provisions
Council power	Recommendation only, 14 days	Ordinary-Bill route may apply
Speaker certification	Conclusive constitutional role	Not a Money Bill certificate unless Article 199 test met

- [LIMIT] Do not label every Bill involving expenditure a Money Bill.
- [ANALYSIS] Classification matters because it determines the Council's power and the available legislative route.

19. Legislative accountability devices

Visual 29 - Accountability ladder

Question Hour

- > information

Zero Hour / special mention

- > urgency

Calling attention / discussion

- > ministerial explanation

Adjournment-type devices

- > censure and disruption of normal business

No-confidence motion

- > government survival

Committees

- > detailed scrutiny

- [FACT] Collective responsibility makes Assembly confidence decisive.
- [FACT] A Legislative Council may question and debate ministers but cannot remove the ministry through no-confidence.
- [ANALYSIS] Daily accountability is broader than government survival: questions, discussions, budget control and committees expose policy to reasons.
- [LIMIT] Exact device names and admissibility conditions vary under State House rules.

20. Committees and scrutiny

Visual 30 - Why committees matter

Full House constraints

- limited time
- political speeches
- complex Bills

|
v

Committee advantage

- smaller forum
- evidence and departments
- clause-level scrutiny
- cross-party work
- [FACT] Financial committees include the Public Accounts Committee, Estimates Committee and Committee on Public Undertakings.
- [ANALYSIS] Strong subject committees can compensate for short sessions and rushed plenary passage.
- [LIMIT] Committee systems differ across States; do not assume every State mirrors Parliament's department-related standing committee structure.

21. Anti-defection inside the State House

Visual 31 - Tenth Schedule basics

Party member

- voluntarily gives up membership
- defies whip without permission/condonation

Independent member

- joins any party

Nominated member

- joins party after six months

Exception

- merger supported by at least 2/3
- [FACT] The 52nd Amendment inserted the Tenth Schedule; the 91st Amendment removed the split exception.
- [FACT] Only the two-thirds merger defence survives.
- [FACT] Speaker/Chairman decides, subject to judicial review under *Kihoto Hollohan*.
- [FACT] "Voluntarily giving up" may be inferred from conduct under *Ravi S. Naik*.

- [FACT] *Rajendra Singh Rana* confirms that Speaker inaction can be reviewed.
- [LIMIT] The approximately three-month norm from *Keisham* is not a statutory deadline.

22. Legislative Council versus Rajya Sabha

Visual 32 - Side-by-side comparison

Dimension	Legislative Council	Rajya Sabha
Constitutional status	Optional	Mandatory Union House
Represents	Mixed local/functional/expert interests	States in Union federation
Creation/abolition	Article 169 route	Cannot be abolished by ordinary law
Ordinary Bills	Only delays up to about 4 months	Co-equal except joint-sitting route
Money Bills	Recommends for 14 days	Recommends for 14 days
Executive confidence	No	Union Council responsible only to Lok Sabha
Special powers	No Article 249/312 equivalent	Articles 249 and 312

- [ANALYSIS] Similar permanence and Money Bill weakness should not hide the Council's deeper inferiority on ordinary legislation and federal purpose.

23. Legislative Council: case for and against

Visual 33 - Retain, reform or abolish

Case for Council	Case against Council
second look at legislation	can only delay
institutional continuity	recurring expenditure
local-body and expert voices	indirect/patronage concerns
forum for experienced public figures	graduate/teacher categories may be dated
checks Assembly haste	may duplicate partisan balance

- [ANALYSIS] A Council's value is empirical and State-specific. A different majority and strong committees may create scrutiny; a mirror-image chamber may add little.
- [ANALYSIS] The best reform position is conditional: retain where it demonstrably improves scrutiny, reform composition and working, and abolish where it functions only as patronage.
- [LIMIT] "White elephant" is a critique, not a constitutional conclusion.

24. State legislative performance and the scrutiny deficit

Visual 34 - Causal chain

```

Few sitting days
+ disruptions
+ weak committee referral
+ late Bill circulation
    |
    v
compressed debate
    |
    v
executive dominance
    |
    v
lower legislative legitimacy
  
```

- [ANALYSIS] State legislatures often face short sessions, weak research support, rushed Bills and uneven committee systems.
- [ANALYSIS] The result is not merely fewer speeches; it is less evidence, less opposition input and weaker anticipation of implementation problems.
- [LIMIT] Sitting-day and referral rates change by State and year. Use verified figures only when a current source is available.

Visual 35 - Reform map

Problem	Targeted reform
Short sessions	minimum annual sitting calendar through rules/convention
Rushed Bills	mandatory prior publication except certified urgency
Weak committees	subject committees with evidence powers and tracked replies
Speaker partisanship	office convention or independent defection tribunal
Assent delay	public Bill tracker and reasoned constitutional action
Council legitimacy	modernise electorate categories and nomination transparency
Poor research	non-partisan legislative research service

25. Women's reservation, delimitation and State Assemblies

Visual 36 - Current constitutional sequence

106th Amendment
 |
 first census after commencement
 |
 publication of census figures
 |
 delimitation exercise
 |
 reservation activated in Assembly constituencies

- [FACT] The amendment provides one-third reservation in the Lok Sabha and State Legislative Assemblies, including within SC/ST-reserved seats.
- [FACT] Reservation is linked to post-census delimitation and is not self-executing merely because the amendment exists.
- [CURRENT] The 2026 attempt to alter this sequence and use the 2011 Census did not become law.
- [CURRENT] Census 2027 publication and later delimitation dates are not yet fixed.
- [LIMIT] Do not state that one-third of current Assembly seats are already reserved for women.
- [LIMIT] The provision does not extend to Legislative Councils.

26. Articles 208-212: procedure, language and judicial restraint

Visual 37 - Closing constitutional map

Article	Subject
208	Rules of procedure
209	Law regulating financial-business procedure
210	Language in legislature
211	Bar on discussion of judges' conduct
212	Courts not to question procedural irregularity

- [FACT] Article 212 protects proceedings from judicial inquiry merely on an alleged procedural irregularity.

- [LIMIT] It does not immunise substantive illegality, mala fides or constitutional violations.
- [ANALYSIS] Legislative autonomy and judicial review coexist: courts avoid managing internal procedure but remain guardians of constitutional boundaries.

27. Full Articles 168-212 rapid map

Article	Recall
168	Constitution of State legislatures
169	Creation/abolition of Councils
170	Assembly composition
171	Council composition
172	Duration
173	Qualifications
174	Sessions, prorogation, dissolution
175	Governor's address/messages
176	Special address
177	Rights of ministers and Advocate General
178-181	Assembly presiding officers
182-185	Council presiding officers
186-187	Salaries and secretariat
188	Oath
189	Voting, vacancies and quorum
190	Vacation of seats
191	Disqualification
192	Decision on disqualification
193	Penalty for unauthorised sitting/voting
194-195	Privileges and salaries
196-197	Ordinary Bills and Council limitation
198-199	Money Bills
200-201	Assent and reserved Bills
202-207	Financial procedure
208-212	Rules, language, judges and courts

PART II - Optional Advanced refinements

28. Why optional bicameralism differs from federal bicameralism

- [ANALYSIS] Rajya Sabha is built into the Union's federal architecture; a Council is created only when a State and Parliament choose it.
- [ANALYSIS] Council electorates are functionally heterogeneous rather than State-representative.
- [ANALYSIS] Its weakness on ordinary Bills means bicameralism supplies delay without final bargaining equality.
- [LIMIT] Weakness does not equal uselessness. Even delay may expose drafting flaws, enable public debate or force compromise.

29. The democratic case against occupational constituencies

- [ANALYSIS] Graduate and teacher constituencies were designed to draw specialised voices into legislation.
- [ANALYSIS] Expansion of higher education weakens the historical claim that graduates form a small expert class.
- [ANALYSIS] Unequal functional franchise can appear inconsistent with universal political equality even while constitutionally valid.
- [ANALYSIS] Reform options include updating eligibility, widening professional representation, strengthening local-body representation or redesigning nomination.
- [LIMIT] Reform requires constitutional/parliamentary action; a State House cannot unilaterally rewrite Article 171.

30. Presiding officer reform options

Option	Strength	Limitation
Resign party membership	symbolic and behavioural neutrality	difficult without legal/conventional support
Independent tribunal for defection	removes direct partisan conflict	requires constitutional or legislative redesign
Fixed statutory timeline	reduces strategic delay	complex cases may need flexibility
Reasoned published orders	improves review and legitimacy	does not remove partisan incentive
Stable tenure and removal safeguards	protects chair from executive pressure	may also insulate misconduct

31. Model answer-writing method

Visual 38 - Evidence discipline

CLAIM

- > NAMED ARTICLE / CASE / CURRENT SOURCE
- > MECHANISM: how it works
- > ANALYSIS: why it matters
- > QUALIFICATION: what it does not prove
- > VERDICT: answer the directive

Example

- Claim: The Council is structurally weak.
- Named evidence: Articles 197-199.
- Mechanism: four-month ordinary-Bill delay and 14-day Money Bill recommendation.
- Analysis: Assembly preference ultimately prevails.
- Qualification: delay may still improve scrutiny.
- Verdict: advisory second chamber, not co-equal legislature.

PYQ, practice and solved workbook

Verified routed Mains PYQs

PYQ 1 - UPSC GS-II 2021, Q14 - direct owner

Verified neutral demand: Explain the constitutional provisions for Legislative Councils and review their working. **15 marks | 250 words**

Demand decoding

- "Explain" requires Articles 169 and 171 plus legislative powers.
- "Review" requires a judgement on actual utility and weakness.
- A complete answer must compare the Council with the Assembly and Rajya Sabha.

Model answer

Claim: [FACT] A Legislative Council is an optional, permanent and structurally subordinate second chamber. Its constitutional purpose is reconsideration and wider representation, not equality with the Assembly.

Named evidence: Under Article 169, an Assembly initiates creation or abolition through a total-membership majority plus two-thirds present and voting; Parliament then enacts an ordinary law, which is not an Article 368 amendment. Article 171 limits strength to one-third of the Assembly with a minimum of 40 and distributes membership among local authorities, graduates, teachers, MLAs and Governor-nominated experts. Five-sixths are indirectly elected through STV and one-sixth nominated. Councillors serve six years, with one-third retiring every two years.

Working and analysis: Articles 197-199 make the Council weak. It may delay an ordinary Bill for about four months but cannot veto it; on a Money Bill it can only recommend within 14 days. It neither votes grants nor removes the ministry, which is responsible only to the Assembly. Unlike the Rajya Sabha, it has no federal or Article 249/312-type special power.

Review: It can check haste, preserve continuity and include local/expert voices. Yet dated occupational constituencies, indirect election, cost and patronage create the "ornamental chamber" criticism.

Qualification and verdict: [LIMIT] Utility varies by State and political composition. Councils should be retained where they produce independent scrutiny, but their electorates, nominations and committee work need reform; where they merely duplicate the Assembly, Article 169 abolition remains constitutionally legitimate.

Examiner comment: Do not stop after composition. "Working" demands Articles 197-199, confidence/finance weakness and a reviewed conclusion.

Evidence chain: Article 169 -> Article 171 -> permanence -> Articles 197-199 -> Assembly confidence -> Rajya Sabha comparison -> reform.

Why this earns marks: It answers provision and performance, uses precise fractions and timelines, supplies counter-arguments and ends with a conditional verdict.

PYQ 2 - UPSC GS-II 2023, Q5 - direct owner

Verified neutral demand: Discuss the role of Presiding Officers of State legislatures in maintaining order and impartial conduct of business. **10 marks | 150 words**

Model answer

Claim: [FACT] The Speaker/Chairman is the procedural guardian of the State House, but the constitutional design gives the office powers whose legitimacy depends on visible impartiality.

Named evidence: Articles 178-185 establish the offices and removal safeguards. The presiding officer interprets rules, maintains order, recognises members, decides admissibility, uses a casting vote under Article 189 and, in the Assembly, certifies Money Bills under Article 199. Under the Tenth Schedule the Speaker/Chairman adjudicates defection.

Analysis: These powers determine who speaks, which motion proceeds, whether a government survives and whether bicameral scrutiny applies. Continued party membership creates a conflict, especially when defection

petitions are delayed.

Judicial control: *Kihoto Hollohan* subjects tribunal-like defection decisions to review. *Keisham Meghachandra* urged decisions ordinarily within three months and proposed an independent tribunal.

Qualification and verdict: [LIMIT] The tribunal and deadline are not enacted law. Impartiality therefore needs reasoned rulings, equal rules, stronger conventions and transfer of defection adjudication to a neutral body. The chair is indispensable, but neutrality must be institutional rather than merely personal.

Examiner comment: Link each power to impartial business; avoid a generic list of Speaker functions.

Evidence chain: Articles 178-185 -> Articles 189/199 -> Tenth Schedule -> *Kihoto* -> *Keisham* -> reform.

Why this earns marks: It fits 150 words conceptually, combines functions with the neutrality problem and gives targeted reform.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2018 GS-I Q39

Verified neutral demand: Vacation and continuation of the Legislative Assembly Speaker's office.

Doctrinal solution

- [FACT] The Speaker vacates on ceasing to be a member, resignation to the Deputy Speaker, or removal by a majority of all then Assembly members after 14 days' notice.
- [FACT] Dissolution does not immediately vacate the Speaker's office; the Speaker continues until immediately before the first meeting of the new Assembly.

Elimination rule: Reject any statement that dissolution instantly ends the Speaker's tenure.

Prelims route 2 - 2019 GS-I Q53

Verified neutral demand: Governor's address/messages and State legislative procedure.

Doctrinal solution

- [FACT] Article 175 permits address and messages.
- [FACT] Article 176 requires the special address after a general election and at the first session of each year.
- [FACT] Article 208 concerns House rules; Article 212 protects against review of procedural irregularity.

Elimination rule: Distinguish the discretionary Article 175 power from the constitutionally required Article 176 occasions.

Prelims route 3 - 2025 GS-I Q59 - cross-owned

Verified neutral demand: Governor's immunity and immunity for words spoken in a State legislature.

Doctrinal solution

- [FACT] Article 361 protects the Governor in specified ways.
- [FACT] Article 194 speech/vote immunity applies to House members.
- [FACT] The Governor is a legislative component under Article 168 but not a House member.

Elimination rule: Do not transfer member privilege to the Governor.

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. State bicameralism

Which statement is correct?

A. Every State has an Assembly, while only specified States have a Council. B. Every State must have two Houses. C. The Governor is outside the State legislature. D. Parliament alone may initiate a Council without State action.

Answer: A.

Explanation: [FACT] Article 168 requires an Assembly in every State; Councils are optional.

OM2. Article 169

Parliament may create a Council after:

A. a simple-majority Council resolution. B. an Assembly special-majority resolution. C. presidential reference to the Supreme Court. D. ratification by half the States.

Answer: B.

Explanation: [FACT] The Assembly initiates through the prescribed special majority.

OM3. Parliamentary majority

The Article 169 law is passed by Parliament:

A. by two-thirds of total membership. B. only after State ratification. C. as an ordinary law by simple majority. D. only in a joint sitting.

Answer: C.

Explanation: [FACT] It is not treated as an Article 368 amendment.

OM4. Council strength

The Council's strength is ordinarily:

A. exactly half the Assembly. B. at least 60. C. fixed by the Governor. D. not more than one-third of Assembly strength and not below 40.

Answer: D.

Explanation: [FACT] Article 171 supplies both limits.

OM5. Local bodies

Approximately what share of a Council is elected by local authorities?

A. One-third. B. One-sixth. C. One-twelfth. D. Two-thirds.

Answer: A.

Explanation: [FACT] Local authorities elect one-third.

OM6. Graduates

Graduates elect:

A. one-third. B. one-twelfth. C. one-sixth. D. half.

Answer: B.

Explanation: [FACT] The graduate and teacher categories each elect one-twelfth.

OM7. Governor nominations

The Governor nominates:

A. one-third of the Assembly. B. one-twelfth of the Council. C. one-sixth of the Council. D. all teacher members.

Answer: C.

Explanation: [FACT] One-sixth is nominated for specified knowledge or experience.

OM8. Council duration

Which is correct?

A. Council dissolves with the Assembly. B. Council has a five-year collective term. C. Half retires every three years. D. Council is permanent and one-third retires every two years.

Answer: D.

Explanation: [FACT] Individual members ordinarily serve six years.

OM9. Minimum age

Minimum age for Assembly membership is:

A. 25. B. 30. C. 35. D. 21.

Answer: A.

Explanation: [FACT] Assembly 25; Council 30.

OM10. Assembly term

The normal Assembly term is:

A. six years. B. five years unless sooner dissolved. C. permanent. D. four years.

Answer: B.

Explanation: [FACT] Article 172 sets five years.

OM11. Quorum

State House quorum is:

A. one-fifth. B. exactly ten in every House. C. ten members or one-tenth, whichever is greater. D. one-tenth, with no minimum.

Answer: C.

Explanation: [FACT] Article 189 contains the ten-member floor.

OM12. Casting vote

The presiding officer:

A. always votes first. B. cannot vote in a tie. C. has two ordinary votes. D. ordinarily has no first vote but has a casting vote on equality.

Answer: D.

Explanation: [FACT] Article 189 provides the casting vote.

OM13. Speaker after dissolution

On Assembly dissolution, the Speaker:

A. continues until immediately before the first meeting of the new Assembly. B. vacates immediately. C. becomes Governor. D. continues for six months regardless of the new House.

Answer: A.

Explanation: [FACT] Article 179 preserves continuity.

OM14. Speaker removal

Removal requires:

A. simple majority of those present without notice. B. majority of all then members after 14 days' notice. C. two-thirds of total membership. D. Governor's order.

Answer: B.

Explanation: [FACT] The effective-majority rule and notice apply.

OM15. Defection adjudicator

Tenth Schedule State-member disqualification is initially decided by:

A. Governor on ECI advice. B. High Court. C. Speaker or Chairman. D. Chief Minister.

Answer: C.

Explanation: [FACT] The presiding officer decides, subject to judicial review.

OM16. Article 192

For a non-defection Article 191 disqualification question, the Governor:

A. acts personally without advice from any institution. B. sends it to Parliament. C. refers it to the Speaker. D. obtains and acts according to the Election Commission's opinion.

Answer: D.

Explanation: [FACT] Article 192 provides this route.

OM17. Ordinary Bill delay

Maximum Council delay across Article 197 stages is approximately:

A. four months. B. six months. C. fourteen days. D. one year.

Answer: A.

Explanation: [FACT] Three months plus one month.

OM18. Joint sitting

For disagreement between State Houses:

A. Governor always calls a joint sitting. B. no constitutional joint sitting exists. C. President chairs a joint sitting. D. Supreme Court resolves amendments.

Answer: B.

Explanation: [FACT] Assembly preference prevails through Article 197.

OM19. Money Bill introduction

A State Money Bill may be introduced:

A. in either House. B. only in the Council. C. only in the Assembly. D. only in Parliament.

Answer: C.

Explanation: [FACT] The Assembly has initiation monopoly.

OM20. Council on Money Bill

The Council:

A. can reject permanently. B. can amend conclusively. C. has three months. D. may recommend within 14 days.

Answer: D.

Explanation: [FACT] Assembly may accept or reject recommendations.

OM21. Money Bill certificate

Who certifies a State Money Bill?

A. Assembly Speaker. B. Governor. C. Council Chairman. D. Advocate General.

Answer: A.

Explanation: [FACT] Article 199 assigns the Speaker.

OM22. Confidence

The State Council of Ministers is collectively responsible to:

A. both Houses equally. B. the Legislative Assembly. C. the Legislative Council. D. the Governor personally.

Answer: B.

Explanation: [FACT] Article 164(2) establishes Assembly responsibility.

OM23. Demands for grants

Demands for grants are voted by:

A. both Houses. B. the Council alone. C. the Assembly alone. D. the Governor.

Answer: C.

Explanation: [FACT] The power of the purse follows the confidence chamber.

OM24. Charged expenditure

Charged expenditure:

A. is neither discussed nor voted. B. is voted only by Council. C. requires a joint sitting. D. may be discussed but is not voted.

Answer: D.

Explanation: [FACT] Article 203 preserves discussion but excludes voting.

OM25. Article 200 return

The Governor may return for reconsideration:

A. a non-Money Bill. B. a Money Bill only. C. a constitutional amendment Bill. D. a demand for grant.

Answer: A.

Explanation: [FACT] A Money Bill cannot be returned under Article 200.

OM26. Mandatory reservation

Reservation for the President is mandatory where a Bill:

A. alters a municipal boundary. B. endangers the constitutional position of the High Court by derogating from its powers. C. creates a Council. D. changes House rules.

Answer: B.

Explanation: [FACT] The second proviso to Article 200 controls.

OM27. Article 201

After a reserved non-Money Bill is returned and repassed:

A. President must assent. B. Governor must enact it without presentation. C. presidential assent is not constitutionally compelled. D. it becomes law automatically.

Answer: C.

Explanation: [FACT] Article 201 differs from the direct Article 200 return loop.

OM28. Assent status

The November 2025 advisory opinion supports:

A. automatic deemed assent after one month. B. rigid judicial timelines in every case. C. absolute non-justiciability of inaction. D. limited review of prolonged unexplained inaction without deemed assent.

Answer: D.

Explanation: [CURRENT] Courts may direct action but cannot invent assent.

OM29. Privilege

Article 194 primarily protects:

A. member speech and votes in the House/committees. B. every private act of a legislator. C. the Governor as a House member. D. all party communications.

Answer: A.

Explanation: [FACT] Privilege is function-linked.

OM30. Article 212

Article 212 bars courts from questioning proceedings merely for:

A. violation of Fundamental Rights. B. procedural irregularity. C. mala fides. D. lack of legislative competence.

Answer: B.

Explanation: [FACT] Substantive constitutional review remains possible.

OM31. Women's reservation

The 106th Amendment reservation applies to:

A. Legislative Councils only. B. every nominated seat. C. Lok Sabha and State Legislative Assemblies, subject to activation conditions. D. Rajya Sabha and Councils.

Answer: C.

Explanation: [FACT/CURRENT] It does not cover Councils and is not operational yet.

OM32. Delimitation trigger

Which is accurate as of 18 August 2026?

A. Delimitation automatically occurred on 1 January 2026. B. The failed 2026 Bills are law. C. Women's reservation already applies to all Assembly elections. D. Publication of the relevant post-2026 census figures and delimitation remain pending.

Answer: D.

Explanation: [CURRENT] Census and delimitation dates remain unresolved.

OM33. Rajya Sabha comparison

Unlike a Council, Rajya Sabha:

A. has federal representation and special Articles 249/312 powers. B. is optional. C. may be abolished by Article 169 law. D. is directly elected by citizens.

Answer: A.

Explanation: [FACT] The Council has no equivalent federal power.

OM34. Governor's special address

Article 176 requires it:

A. before every sitting. B. after each general election and at the first session of each year. C. only in bicameral States. D. only during emergency.

Answer: B.

Explanation: [FACT] These are the two constitutional occasions.

OM35. Assembly dissolution and Bills

Which statement is generally correct?

A. Every Bill survives dissolution. B. Council Bills always become law. C. Bills pending in or passed by the Assembly at relevant stages may lapse on dissolution. D. Money Bills transfer to Parliament.

Answer: C.

Explanation: [FACT] Lapse analysis depends on House and stage.

OM36. Council verdict

The most accurate constitutional description is:

A. co-equal federal chamber. B. confidence chamber. C. permanent veto chamber. D. optional, permanent and mainly suspensive/advisory chamber.

Answer: D.

Explanation: [ANALYSIS] This captures Article 169 status and Articles 197-199 weakness.

Remedial MCQs - strict A -> B -> C -> D rotation

R1. Bicameral-State trap

Which is currently bicameral?

A. Karnataka. B. Odisha. C. Rajasthan. D. Tamil Nadu.

Answer: A.

Remedy: Use KATBUM.

R2. Article 169 trap

The Assembly resolution uses:

A. simple majority only. B. total-membership majority plus two-thirds present and voting. C. unanimous vote. D. half-State ratification.

Answer: B.

Remedy: Special Assembly resolution, ordinary parliamentary law.

R3. Composition trap

Teachers elect:

A. one-third. B. one-sixth. C. one-twelfth. D. half.

Answer: C.

Remedy: $1/3 - 1/12 - 1/12 - 1/3 - 1/6$.

R4. Council power trap

On an ordinary Bill, Council ultimately:

A. has absolute veto. B. forces a joint sitting. C. sends it to Supreme Court. D. can delay but not defeat Assembly preference.

Answer: D.

Remedy: Three months plus one month; no State joint sitting.

R5. Speaker trap

The Assembly Speaker after dissolution:

A. continues until immediately before the new Assembly's first meeting. B. vacates instantly. C. continues for a fixed six years. D. becomes caretaker Chief Minister.

Answer: A.

Remedy: Continuity is an explicit Article 179 exception.

R6. Quorum trap

Correct quorum:

A. one-tenth only. B. ten or one-tenth, whichever is greater. C. ten or one-tenth, whichever is smaller. D. twenty in every House.

Answer: B.

Remedy: Remember the State ten-member floor.

R7. Disqualification trap

Non-defection Article 191 disputes go to:

A. Speaker without review. B. President. C. Governor acting according to ECI opinion. D. Chief Minister.

Answer: C.

Remedy: Article 192 differs from the Tenth Schedule.

R8. Privilege trap

Article 194:

A. makes Governor a House member. B. protects every criminal act. C. bars all judicial review. D. protects member speech/votes in legislative functions.

Answer: D.

Remedy: Privilege is member- and function-specific.

R9. Money Bill trap

Council may:

A. recommend within 14 days. B. veto permanently. C. amend conclusively. D. certify it.

Answer: A.

Remedy: Speaker certifies; Assembly decides recommendations.

R10. Confidence trap

No-confidence is effective in:

A. either House. B. Assembly only. C. Council only. D. Governor's office.

Answer: B.

Remedy: Collective responsibility is to the Assembly.

R11. Reservation trap

Women's reservation presently covers constitutionally:

A. Councils only. B. Rajya Sabha only. C. Lok Sabha and Assemblies, but activation remains pending. D. every House immediately.

Answer: C.

Remedy: Separate constitutional provision from operational implementation.

R12. Article 212 trap

Courts remain able to review:

A. no legislative matter. B. every minor procedural error. C. only Council composition. D. substantive constitutional illegality despite Article 212.

Answer: D.

Remedy: Procedural irregularity is not substantive illegality.

Original solved Mains practice

M1. "The Legislative Council is a revising convenience, not a revising power." Examine. (10 marks, 150 words)

Model answer

Claim: [FACT] A Council offers a second deliberative stage but lacks the authority to defeat the elected Assembly.

Named evidence: Article 197 permits only about four months' delay on ordinary Bills. Articles 198-199 limit it to 14-day recommendations on Money Bills. It cannot vote grants or remove the ministry, which is responsible only to the Assembly.

Analysis: These limits preserve democratic primacy while allowing reconsideration, expert participation and institutional continuity. Different party control may expose drafting flaws or compel public justification.

Qualification: [LIMIT] Delay without committee capacity can become mere duplication, and graduate/teacher constituencies may no longer represent scarce expertise.

Verdict: The Council is valuable when delay produces evidence-based scrutiny; it is ornamental when it only reproduces party patronage. Retention should therefore be linked to composition reform and measurable legislative work.

Evidence chain: Articles 197-199 -> finance/confidence weakness -> scrutiny value -> reform.

M2. Should Legislative Councils be abolished? Discuss with constitutional and democratic arguments. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Uniform abolition is as crude as automatic retention because Article 169 deliberately makes State bicameralism optional.

For abolition: Councils impose cost, cannot block ordinary or Money Bills, may provide patronage posts and rest partly on dated occupational electorates. Their existence depends on Assembly initiative and ordinary parliamentary law, confirming that they are not federal essentials.

For retention: Permanence preserves memory; local-body, teacher, graduate and expert categories diversify representation; a second chamber can slow hasty majoritarian legislation and strengthen committees. Where the Council has a different majority, it may force reasons and negotiation.

Named evidence: Articles 169 and 171 establish optionality and composition; Articles 197-199 establish subordination. Rajya Sabha comparison shows that weakness is real but does not prove zero deliberative value.

Reform: Modernise electorates, publish nomination criteria, strengthen committee referral, assess legislative outputs and prevent use as rehabilitation for defeated politicians.

Verdict: Use a State-specific retain-reform-abolish test. Councils that add independent scrutiny deserve reform; those that merely delay and reward patronage may legitimately be abolished through Article 169.

M3. Analyse the constitutional position and impartiality challenge of State Speakers. (15 marks, 250 words)

Model answer

Claim: [FACT] The Speaker is simultaneously procedural judge, constitutional certifier and politically elected member, creating an unavoidable neutrality challenge.

Named evidence: Articles 178-181 establish election, continuity and removal. Article 189 provides the casting vote; Article 199 assigns Money Bill certification; the Tenth Schedule assigns defection adjudication. *Kihoto Hollohan* subjects this tribunal role to review. *Keisham Meghachandra* urged decisions ordinarily within three months and an independent tribunal. *Subhash Desai* requires recognition of the political party's authorised whip.

Analysis: Agenda control, recognition and delayed disqualification can alter confidence arithmetic. Party membership means the adjudicator may have an institutional stake in the outcome.

Counterpoint: The office needs decisional authority to preserve order, and excessive external intervention may weaken House autonomy.

Reform: Require reasoned orders, equal scheduling rules, transparent recognition decisions, strong removal safeguards and transfer defection disputes to a neutral tribunal.

Verdict: The Speaker should remain master of procedure, but not final partisan judge of government survival. Institutional separation is stronger than appeals to personal restraint.

M4. Compare the legislative powers of a State Assembly and Legislative Council. (15 marks, 250 words)

Model answer

Claim: [FACT] State bicameralism is formally dual but functionally Assembly-dominant.

Ordinary legislation: Either House may ordinarily initiate, but Article 197 allows the Council only three months plus one month of delay; there is no joint sitting.

Finance: Money Bills originate only in the Assembly on recommendation; the Council has 14 days to recommend. Demands for grants are voted only by the Assembly.

Executive accountability: Ministers may participate in either House, but collective responsibility and no-confidence belong only to the Assembly.

Constitutional status: The Assembly can initiate Council creation or abolition under Article 169. Council members neither elect the President nor possess a Rajya Sabha-like federal role.

Counterpoint: The Council is permanent and can debate, question ministers, initiate non-Money Bills and add expert/local representation.

Verdict: The Assembly decides; the Council advises and delays. This asymmetry protects direct democratic control but makes Council legitimacy depend on the quality of scrutiny rather than formal power.

M5. "State legislative decline strengthens executive federalism at the cost of representative federalism." Analyse. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] When State Houses sit briefly, scrutinise few Bills and rely on weak committees, policy shifts from elected deliberation toward cabinets, bureaucracy and Union-State executive bargaining.

Mechanism: Rushed Bills reduce opposition and stakeholder input. Weak financial scrutiny lowers departmental accountability. Ordinances and delegated legislation enlarge executive law-making. Limited research support makes members dependent on departments. Intergovernmental decisions then occur through councils, ministries and party leadership rather than State legislatures.

Constitutional evidence: Articles 168-212 create a complete legislative and financial-control structure; Article 164(2) makes the executive responsible to the Assembly. A weak Assembly therefore hollows the responsible-government link even if formal confidence survives.

Qualification: [LIMIT] Executive coordination is necessary in a complex federation, and sitting-day performance varies widely across States.

Reform: Adopt predictable calendars, pre-legislative publication, subject committees, non-partisan research, post-legislative review and tracked government responses.

Verdict: Strong State autonomy requires not only powerful State executives but capable State legislatures. Representative federalism begins inside each State House.

M6. Explain how Articles 200-201 balance State democracy, constitutional scrutiny and Union oversight. (15 marks, 250 words)

Model answer

Claim: [FACT] Articles 200-201 make assent a constitutional checkpoint rather than a second political mandate.

Mechanism: The Governor may assent, withhold, return a non-Money Bill or reserve it. Repassage after direct return normally closes withholding. Reservation is mandatory where High Court powers are endangered. For a reserved Bill, the President may assent, withhold or direct return; repassage does not compel assent.

Analysis: Return enables State reconsideration, mandatory reservation protects judicial structure and presidential consideration provides Union oversight where the Constitution contemplates it. Yet unexplained delay suspends an elected legislature without taking an accountable decision.

Current control: [CURRENT] The November 2025 Article 143 opinion rejects rigid judicial deadlines and automatic deemed assent while permitting limited review of prolonged unexplained inaction.

Qualification: [LIMIT] It is advisory and did not overrule the April judgment. Courts may direct decision, not dictate the option.

Verdict: Federal balance requires prompt, reasoned constitutional choice: scrutiny without pocket veto and review without judicial substitution.

M7. Evaluate the case for reforming Legislative Council composition. (20 marks, 250 words)

Model answer

Claim: [ANALYSIS] Article 171's mixed design sought expertise and local representation, but its legitimacy depends on whether twentieth-century categories still serve democratic scrutiny.

Strengths: Local-authority members connect decentralisation to State law-making. Graduate and teacher constituencies may add policy knowledge. MLA-elected and nominated members bring experience and permit representation outside mass elections. STV supports proportionality.

Weaknesses: Graduate status is no longer a narrow expertise proxy; teacher constituencies exclude other public-service professions; electoral rolls and turnout may be weak; nominations may become partisan patronage; MLA-elected seats can rehabilitate defeated politicians.

Institutional context: Because Articles 197-199 make the Council weak, it cannot justify itself through decisional power. It must justify itself through better debate, committees and representation.

Reforms: Update occupational categories after evidence review, strengthen local-body voice, publish objective nomination criteria, require conflict disclosure, invest in research and measure committee/Bill contributions.

Qualification: [LIMIT] Article 171 redesign needs national constitutional/parliamentary action; State-specific experimentation is constrained.

Verdict: Reform should preserve plural representation while replacing inherited status categories with transparent, contemporary expertise and democratic linkage.

M8. Assess how delimitation and women's reservation will reshape State Assemblies. (20 marks, 250 words)

Model answer

Claim: [CURRENT] Delimitation and one-third women's reservation could transform Assembly size, constituency boundaries, party recruitment and federal representation, but neither transformation is operational yet.

Constitutional sequence: The 84th Amendment freeze lasts until publication of the first census after 2026. The 106th Amendment links women's reservation in the Lok Sabha and Assemblies to the first census after commencement and subsequent delimitation. Reservation includes SC/ST sub-reservation and seat rotation.

Potential effects: Fresh boundaries may correct population disparities but create North-South and population-control concerns. Larger or redrawn Assemblies may alter ministry caps, constituency workload and regional balance. Women's reservation can broaden descriptive representation and party pipelines but rotation may weaken constituency continuity.

Current evidence: [CURRENT] The 2026 Bills proposed using the 2011 Census and changing the sequence but failed to become law. Census 2027 publication and delimitation dates remain unknown.

Qualification: [LIMIT] No current seat projection is legally operative, and Councils are outside the reservation.

Verdict: Legitimacy needs transparent criteria, federal consultation, timely census publication and safeguards against penalising successful population stabilisation. Representation reform must expand inclusion without converting demographic change into federal distrust.

Final consolidated register notes

Constitutional skeleton

Article 168: Governor + Assembly + optional Council
Article 169: Council creation/abolition
Articles 170-171: composition
Articles 172-177: duration, qualification, sessions, address
Articles 178-195: officers, members, voting, privilege
Articles 196-201: Bills and assent
Articles 202-207: finance
Articles 208-212: procedure and judicial restraint

Assembly essentials

- Directly elected popular chamber.
- Normally 60-500, subject to special small-State arrangements.
- Minimum age 25.
- Normal term five years unless sooner dissolved.
- Confidence and no-confidence chamber.
- Votes demands for grants and controls Money Bills.
- Speaker continues after dissolution until immediately before the new Assembly's first meeting.

Council essentials

- Exists in six States: Karnataka, Andhra Pradesh, Telangana, Bihar, Uttar Pradesh and Maharashtra.
- Article 169: Assembly special majority, then ordinary parliamentary law.
- Not an Article 368 amendment.
- Strength: maximum one-third of Assembly, minimum 40.
- Composition: 1/3 local bodies, 1/12 graduates, 1/12 teachers, 1/3 MLAs, 1/6 Governor-nominated.
- Five-sixths indirectly elected by STV; one-sixth nominated.
- Permanent; one-third retire every two years; six-year member term.
- Minimum age 30.

Assembly-Council power comparison

Area	Assembly	Council
Ordinary Bill	Final control	Delay up to about four months
Money Bill	Originates and decides	Recommends within 14 days
Grants	Votes	Does not vote
Confidence	Removes ministry	Cannot remove
Dissolution	Dissolvable	Permanent
Council existence	Initiates Article 169 resolution	Cannot secure its own survival

Presiding officers

- Articles 178-181: Speaker and Deputy Speaker.
- Articles 182-185: Chairman and Deputy Chairman.
- Removal: majority of all then members plus 14 days' notice.
- Article 189: ordinary majority; casting vote; quorum ten or one-tenth, whichever is greater.
- Article 199: Speaker certifies State Money Bill.
- Tenth Schedule: Speaker/Chairman decides defection, subject to review.
- *Kihoto*: reviewable tribunal.

- *Keisham*: ordinarily about three months; independent tribunal suggested.
- *Subhash Desai*: political party, not factional legislature party, appoints authorised whip/leader.

Bills and assent

Ordinary bicameral Bill:

Assembly → Council 3 months → Assembly repasses → Council 1 month → Assembly prevails

Money Bill:

Assembly only → Council recommendations in 14 days → Assembly decides

Article 200:

assent / withhold / return non-Money Bill / reserve

Article 201:

President assent / withhold / return non-Money Bill

- No State joint sitting.
- Mandatory reservation where High Court constitutional position is endangered.
- November 2025 opinion: no rigid timelines, no deemed assent, limited review of prolonged unexplained inaction.

Finance

- Article 202: annual financial statement.
- Charged expenditure discussed, not voted.
- Article 203: demands for grants voted only by Assembly.
- Article 204: Appropriation Bill.
- Articles 205-206: supplementary/additional/excess and vote-on-account/credit/exceptional grants.
- Article 207: financial-Bill restrictions and recommendation.

Privilege and courts

- Article 194 protects member speech/votes in legislative functions.
- Governor is not a member and does not receive Article 194 member privilege.
- Article 211 bars discussion of judges' conduct in discharge of duties.
- Article 212 protects against review for procedural irregularity, not substantive unconstitutionality.

Current controls

- Women's reservation covers Lok Sabha and Assemblies, not Councils.
- It is constitutionally provided but not operational as of 18 August 2026.
- 2026 delimitation/women-reservation Bills did not become law.
- Census 2027 publication and delimitation dates remain unknown.
- Never write that delimitation automatically began in 2026.

Answer-writing evidence bank

Claim	Named evidence	Qualification
Council optional	Articles 168-169	Parliament still enacts law
Council heterogeneous	Article 171 fractions	not direct popular mandate
Council weak	Articles 197-199	delay may still improve scrutiny
Assembly dominant	Article 164(2), grants and Money Bills	Council retains debate/question role
Speaker neutrality strained	Tenth Schedule, <i>Kihoto, Keisham</i>	tribunal reform not enacted
Assent is no pocket veto	Articles 200-201, 2025 opinion	no deemed assent or fixed court timeline
Procedure autonomous	Articles 208-212	substantive illegality review survives
Reservation pending	106th Amendment and census-delimitation sequence	Councils excluded

Final verdicts

- **Council:** optional advisory chamber whose legitimacy comes from scrutiny, not veto.
- **Assembly:** elected confidence and finance chamber; centre of responsible State government.
- **Speaker:** indispensable procedural guardian requiring institutional neutrality.
- **State legislative reform:** more sittings, prior publication, committees, research and tracked assent.
- **Representation:** delimitation and women's reservation must combine inclusion with federal fairness.

Last-minute traps

1. Six bicameral States, not seven.
2. Assembly special majority; Parliament simple majority under Article 169.
3. Council minimum 40, not 60.
4. Council formula: 1/3, 1/12, 1/12, 1/3, 1/6.
5. Assembly age 25; Council age 30.
6. Council permanent; Assembly dissolvable.
7. Ordinary-Bill delay about four months; Money Bill 14 days.
8. No joint sitting at State level.
9. State quorum is ten or one-tenth, whichever is greater.
10. Speaker continues after dissolution until the new Assembly first meets.
11. Article 192 route does not govern Tenth Schedule disputes.
12. Governor is part of legislature but not a House member.
13. Article 212 bars procedural-irregularity review, not substantive review.
14. Women's reservation is not operational and does not cover Councils.